

25STCV34258 25STCV34258

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Case Number: 25STCV34258 Hearing Date: June 23, 2026 Dept: 414

25STCV34258

LL Jane Doe DG v. Doe School District

r/t LL

22STCV39091 Jane Doe BC

Tuesday, June

23, 2026

[TENTATIVE] ORDER

OVERRULING DEMURRER TO FIRST AMENDED COMPLAINT (0566)

I.

BACKGROUND

The

first amended complaint alleges that Defendants' negligent and reckless conduct

resulted in Plaintiff being groomed and sexually abused by a teacher employed

by Defendant. Plaintiff alleges claims for negligence and negligent hiring,

supervision, and retention.

II.

ARGUMENTS

Defendant

demurs to all claims on grounds they are barred by the statute of limitations.

Delayed discovery does not apply in this case because Plaintiff declared under penalty of perjury that she dropped out of high school as a result of the teacher's abuse, and therefore, she was aware of the psychological consequence of the abuse at the time it occurred.

Plaintiff

argues the court cannot take judicial notice of facts asserted in Plaintiff's declaration filed in opposition to a motion for summary judgment filed in the related matter. Plaintiff objects to the request for judicial notice. Defendant objected to the declaration for lack of personal knowledge. Defendant improperly applies the summary judgment standards to the demurrer. At the demurrer stage, the court is not concerned with the truth of the allegations.

In

reply, Defendant submits Plaintiff's deposition, which was taken after this demurrer was filed. It proves delayed discovery does not apply.

III.

LEGAL STANDARDS

A demurrer tests the sufficiency of a

complaint as a matter of law and raises only questions of law. (Schmidt v. Foundation Health (1995) 35 Cal.App.4th 1702, 1706.) In

testing the complaint's sufficiency, the court must assume the truth of the

properly pleaded factual allegations as well as facts that can be reasonably

inferred from those expressly pleaded facts. The court may also consider

matters properly subject to judicial notice. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.)

The

court may not consider contentions, deductions, or conclusions of fact or law.

(Moore v. Conliffe (1994) 7 Cal.4th 634, 638.) Plaintiff is required to allege

facts sufficient to establish every element of each cause of action. (Rakestraw v. California Physicians Service (2000)

81 Cal.App.4th 39, 43.) Where the complaint fails to state facts

sufficient to constitute a cause of action, courts should sustain the demurrer.

Code Civ. Proc., § 430.10(e); (Zelig v. County of Los Angeles (2002) 27 Cal.4th 1112,

1126.)

Sufficient facts are the essential facts of

the case "with reasonable precision and with particularity that is sufficiently

specific to acquaint the defendant with the nature, source, and extent of his

cause of action." (Gressley v. Williams (1961) 193 Cal.App.2d 636, 643-644.)

Whether the Plaintiff will be able to prove the pleaded facts is

irrelevant. (Stevens v. Superior Court (1986) 180 Cal.App.3d 605, 609–610.)

A demurrer may also be sustained if a

complaint is “uncertain.” Uncertainty exists where a complaint’s factual

allegations are so confusing, they do not sufficiently apprise a defendant of

the issues it is being asked to meet. (Williams v. Beechnut Nutrition Corp. (1986)

185 Cal.App.3d 135, 139, fn. 2; Code Civ. Proc., § 430.10(f).)

IV. DISCUSSION

A. Material allegations

Plaintiff alleges that her teacher,

Webster Johnson, groomed and sexually abused her from 1976-1978 when Plaintiff

was between the ages of sixteen and eighteen years old. (FAC ¶ 4.) Plaintiff

was born in 1960. (FAC ¶ 4.) Plaintiff buried the sexual abuse and did not

discover, and should not have reasonably discovered, that her psychological

injuries were caused by the sexual abuse until 2023. (FAC ¶ 16.) Plaintiff

filed this action on November 21, 2025.

B.

Analysis

Both parties rely on the statute in effect

on January 1, 2025, which states:

"Notwithstanding

Section 340.1, in an action for recovery of damages suffered as a result of childhood sexual assault that occurred before January 1, 2024, the time for commencement of the action shall be within 22 years of the date the plaintiff attains the age of majority or within five years of the date the plaintiff discovers or reasonably should have discovered that psychological injury or illness occurring after the age of majority was caused by the sexual assault, whichever period expires later," (Code Civ. Proc., § 340.11(a)(1).)

Plaintiff

was born in 1960 and turned 18 in 1978. The statute would have expired in 2000, twenty-two years after majority.

The

statute, however, is subject to delayed

discovery. Plaintiff has five years to file the action from the date the

plaintiff discovers or reasonably should have discovered that psychological

injury or illness occurring after the age of majority was caused by the sexual

assault. (Id.)

Plaintiff

alleges she buried the sexual abuse and did not discover it until 2023.

(Complaint, ¶ 16.) Therefore, this action filed in 2025 is timely.

The

court takes judicial notice of the fact that Plaintiff submitted a declaration

in the related matter. (D's RJN Ex. C.) Therein,

Plaintiff declares, "I dropped out of high school in 1978 shortly before

graduation as a result of the trauma caused by the sexual abuse I suffered at

the hands of Webster Johnson. (Id. ¶ 9.)

Defendant

contends this "proves" that delayed discovery cannot apply if Plaintiff realized

her "trauma" from the sexual abuse when she was 18. Even if the court accepted this as a fact, the

declaration does not assert when

Plaintiff connected the trauma suffered then to her present "psychological

injury or illness."

Plaintiff

alleges she buried the sexual abuse. The court accepts the allegation as true. Defendant's

argument that "this allegation is not accurate" is improperly raised at the

demurrer stage. (Dem. 5:2-3.) A demurrer tests the

legal sufficiency of the allegations. It does not test their truth, the

Plaintiff's ability to prove them, or the possible difficulty in making such

proof. (Saunders v.

Superior Court (1994) 27 Cal.App.4th 832, 840.)

The

court denies Defendant's request for judicial notice of evidence submitted with the reply brief. The events Plaintiff can recall in 2025 at her deposition does not mean Plaintiff was aware that she was aware of her psychological injury when she was 18. Knowing that assault is wrong at the time of the event does not negate delayed discovery.

Defendant

equates "trauma" with "psychological injury or illness." The court cannot take judicial notice of this assumption. While

the court can take judicial notice of the existence of the declaration, the

interpretation of the document as determined by Defendant is not subject to

judicial notice because it is disputable. (*Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 113–114.) As Plaintiff observes, resolution of

this issue is appropriately addressed at the summary judgment stage.

"Shock

and confusion" engendered by molestation "may lead a child to deny or

block the traumatic events from conscious memory, or to turn the anger and pain

inward so that the child blames himself or herself for the events." (*Evans v. Eckelman* (1990) 216 Cal.App.3d 1609, 1615). The Evans court

also reasoned that "[e]ven where memory of the events themselves is not

suppressed, it may be some time before the victim can face the full impact of

the acts." (*Id.* at 1615.)

More

recently, the Sixth District Court of Appeal in *Doe 3, Family Services Organization v. Superior Court* (2025) 110 Cal.App.5th 571 discussed the legislative intent to

extend the statute of limitations “in recognition of ‘the uniqueness of

childhood sexual abuse and the difficulty that younger victims may have fully

understanding the abuse, coming to terms with what has occurred, and then

coming forward in a timely fashion.” (*Doe 3* at 586.)

“The supporters of the bill believed ‘the psychological injuries

from sexual assault emerge later in life and that victims routinely need

decades to reach the psychological place where they can come forward. If the

statute of limitations is too short, then there can be no justice and more children

will be abused.” (*Id.* at pp. 2, 4-5.) The sponsor of the bill argued, ‘It is

time for the law to recognize what we all now know – that it can take decades

before some survivors are capable of coming forward. Children being assaulted

today may not be ready to come forward until decades in the future.’ (Assem.

Com. on Judiciary, 3d reading analysis of Assem. Bill No. 218 (2019-2020 Reg.

Sess.), as introduced Jan. 16, 2019, p. 2.) The Legislature recognized that, by

the time victims understand the abuse they had suffered and are willing to come

forward, ‘they often find that the civil statute of limitations has already

expired.” (*Id.* at 586-587.)

V.

CONCLUSION

Based on

the foregoing, the demurrer is OVERRULED. Defendant is ordered to answer within

20 days.